

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Margot Hesel	Team: Team # 4	CCRB Case #: 201107335	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 06/04/2011 9:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/4/2012	Precinct: 70		
Date/Time CV Reported Tue, 06/07/2011 12:47 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/07/2011 12:47 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Winston Willabus	03104	935969	070 PCT
2. POM Amjad Khan	16306	944699	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brian Flynn	30217	945190	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Amjad Khan	Abuse: PO Amjad Khan stopped § 87(2)(b)	A . Exonerated
B . SGT Winston Willabus	Abuse: Sgt. Winston Willabus frisked § 87(2)(b)	B . Unsubstantiated
C . SGT Winston Willabus	Abuse: Sgt. Winston Willabus searched § 87(2)(b)	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed a complaint with the CCRB on June 7, 2011 over the phone. He stated that on June 4, 2011, at 9:00 pm, he interacted with officers from the 70th Precinct in front of § 87(2)(b) in Brooklyn. The following allegations resulted.

Allegation A—Abuse of Authority: PO Amjad Khan stopped § 87(2)(b)

§ 87(2)(g) It is recommended that allegation A be closed, **Exonerated**.

Allegation B—Abuse of Authority: Sgt. Winston Willabus frisked § 87(2)(b)

§ 87(2)(g) It is recommended that allegation B be closed, **Unsubstantiated**.

Allegation C—Abuse of Authority: Sgt. Winston Willabus searched § 87(2)(b)

§ 87(2)(g) It is recommended that allegation C be closed, **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

Mediation was presented to § 87(2)(b) over the phone on June 13, 2011. § 87(2)(b) stated that he did not want to mediate § 87(2)(b).

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b) *black male*, § 87(2)(b) *black hair and brown eyes*. § 87(2)(b)

CCRB testimony

§ 87(2)(b) filed a complaint with the CCRB over the phone on June 7, 2011 and he provided a phone statement to the CCRB on June 13, 2011 (encl. 5a). He was interviewed at the CCRB on June 16, 2011 (encl. 5b-e) § 87(2)(g)

On June 4, 2011, at about 9:00 p.m., § 87(2)(b)'s friend, § 87(2)(b) dropped him off at the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) and § 87(2)(b) were planning to attend a baby shower later that night. § 87(2)(b) had \$600 in cash and his keys in the right front pocket of his pants. His wallet was in the left back pocket of his pants. A small Bible was in the left front pocket of his pants. He also carried a cell phone which he thought was probably in the right back pocket of his pants. He did not have any other items on his person. He was alone.

§ 87(2)(b) wanted to get a haircut before the baby shower, so he went into § 87(2)(b) which is on § 87(2)(b) at § 87(2)(b). The barber had another customer in his chair. § 87(2)(b) said he would return in 10 minutes. § 87(2)(b) did not interact with anyone else inside the barbershop. § 87(2)(b) was in the barbershop for about two minutes.

§ 87(2)(b) walked to his home at § 87(2)(b) which is less than a block away and around the corner from the barbershop. § 87(2)(b) was inside his home for about 10 minutes. He changed his clothes, sprayed Gucci cologne on himself, and walked back to the barbershop. He did not interact with anyone along the way. Once § 87(2)(b) got to the barbershop, he saw that the barber had someone else in his chair. He was in the barbershop for no more than a minute. § 87(2)(b) decided not to wait, and went to go find § 87(2)(b) so that they could go to the baby shower. § 87(2)(b) did not see § 87(2)(b)'s car in front of the barbershop, so he walked back from the barbershop to his house. He did not remember why he returned to his house.

When § 87(2)(b) got to the front door of his building, he saw three uniformed police officers standing in front of it. These officers were identified by the investigation as PO Ajmad Khan, Sgt. Winston Willabus and PO Brian Flynn from the 70th Precinct.

Sgt. Willabus asked § 87(2)(b) if he lived upstairs. § 87(2)(b) said yes, and started to walk towards the front door of his building. The officers stood in front of the door, blocking his way, so he could not go inside. The officers asked § 87(2)(b) if he had ID to show that he lived there. § 87(2)(b) asked why he had to show ID to prove that he lived there. Sgt. Willabus said, "Once you give us the ID, we'll let you know." § 87(2)(b) did not provide the officers with ID. § 87(2)(b) asked what the problem was. The officers told him that someone had called the cops from upstairs. The officers did not give § 87(2)(b) any more details. § 87(2)(b) thought that this explanation did not make sense, as he had just been inside, changing his clothes, and he had not heard any noise from the neighbors upstairs.

§ 87(2)(b)'s upstairs neighbor, § 87(2)(b), walked outside of the building at this time. § 87(2)(b) asked her to call his niece for him. § 87(2)(b) said that she would do so and she went back upstairs. A few moments later, § 87(2)(b)'s sister, § 87(2)(b), came out of the building. § 87(2)(b) told the officers that § 87(2)(b) lived upstairs. She stayed and watched the incident for about a minute or two. Sgt. Willabus told § 87(2)(b) that if he did not give the officers his ID, the officers would take it from him. § 87(2)(b) removed his wallet from his pants pocket and removed his ID. He noted that the address on his ID is not his current address. Sgt. Willabus gave § 87(2)(b)'s ID to PO Khan. PO Khan went to the officers' patrol car.

About two minutes after § 87(2)(b) was stopped by the officers, § 87(2)(b) and his wife § 87(2)(b) drove up and parked at § 87(2)(b) and § 87(2)(b). § 87(2)(b) believed that they saw most of his interaction with the officers.

Sgt. Willabus frisked § 87(2)(b) under his arms and over the front and back of his pants. Sgt. Willabus put his fingers inside § 87(2)(b)'s sneakers, underneath the arches of § 87(2)(b)'s feet and he emptied all of § 87(2)(b)'s pants pockets. § 87(2)(b) alleged that Sgt. Willabus emptied his pants pockets in his sworn statement only, and he did not allege this in any prior statements. Sgt. Willabus told § 87(2)(b) that he searched him because he smelled

weed on him. § 87(2)(b) told Sgt. Willabus that this was not possible because he had just put on cologne. Sgt. Willabus told § 87(2)(b) that the barbershop was a known drug location and that people sell drugs outside of § 87(2)(b)'s building and the barbershop.

PO Khan returned from the officers' car and gave § 87(2)(b) a summons for disorderly conduct. § 87(2)(b) did not raise his voice or use profanity during the incident.

Witness: § 87(2)(b)

- § 87(2)(b) *female*

Phone Statement

§ 87(2)(b) provided a phone statement to the CCRB on June 22, 2011 (encl. 5g). She stated that on the date of the incident, she and her husband § 87(2)(b) were planning to go to a baby shower with § 87(2)(b), § 87(2)(b), and § 87(2)(b) dropped § 87(2)(b) off at the corner of § 87(2)(b) and § 87(2)(b) and returned to pick him up about five minutes later. § 87(2)(b) was in the driver's seat and § 87(2)(b) was in the passenger's seat of their car. They parked on § 87(2)(b) at the corner of § 87(2)(b) next to a corner store. The car was about five feet from § 87(2)(b) and on the same side of the street. The passenger's side of the car faced § 87(2)(b).

Sgt. Willabus and PO Khan were talking to § 87(2)(b) could not hear what the officers and § 87(2)(b) were saying. There were a couple of uniformed officers standing up on the block on § 87(2)(b). She did not recall if these other officers interacted with § 87(2)(b).

Either both officers searched inside all of the pockets of § 87(2)(b)'s jeans, or one officer searched § 87(2)(b) while the other stood nearby. The officers directed § 87(2)(b) to put his arms against a wall and to spread his legs. The officers patted down § 87(2)(b)'s back, his chest and the back and front of his legs. The officers also lifted up § 87(2)(b)'s pants and shook out his pants. § 87(2)(b) did not recall if she saw the officers search inside § 87(2)(b)'s sneakers. § 87(2)(b) removed his wallet from his pocket and gave the officers his ID. § 87(2)(b) did not hear § 87(2)(b) raise his voice, curse or use profanity during the incident.

Witness: § 87(2)(b)

- § 87(2)(b) *did not provide his name, age, race or occupation to the CCRB.*

Phone Statement

§ 87(2)(b) provided a phone statement to the CCRB on June 20, 2011 (encl. 5f). He stated that he saw § 87(2)(b) interact with two officers, identified by the investigation as Sgt. Willabus and PO Khan, in front of § 87(2)(b). At this time, § 87(2)(b) was sitting in his car, about 10 to 15 feet from § 87(2)(b). The officers asked § 87(2)(b) questions, but § 87(2)(b) did not hear what any of these questions were. The officers asked § 87(2)(b) for ID three or four times before § 87(2)(b) gave his ID to the officers. One of the officers put his hands in § 87(2)(b)'s pants pockets and removed § 87(2)(b)'s wallet and keys. § 87(2)(b) did not see any officer frisk § 87(2)(b).

Attempts to obtain sworn statements

Both § 87(2)(b) and § 87(2)(b) stated that they would be unable to provide sworn statements in the field, given their work schedules. After obtaining phone statements from § 87(2)(b) and § 87(2)(b) the undersigned made five phone calls, leaving voice messages when possible, and successfully mailed first and final please call letters to both individuals in order to schedule interviews to obtain sworn statements from them at the CCRB. To date, neither individual has contacted the CCRB.

Attempts to contact civilians

- § 87(2)(b) : § 87(2)(b) stated that there is a grocery store called § 87(2)(b) located next door to the incident location. During the incident, he saw a woman he knows as the store owner's wife standing outside of the store, watching. An address and telephone number for this store was located in the online White Pages. Between July 20, 2011 and August 8, 2011, five phone calls at varying times were made to § 87(2)(b). No one answered the phone and there was no voice mail system. On July 20, 2011, a first please call letter was successfully mailed to § 87(2)(b) and on July 27, 2011, a final please call letter was mailed to § 87(2)(b). No one from this business has contacted the CCRB.
- § 87(2)(b) § 87(2)(b) stated that his sister, § 87(2)(b) witnessed part of his interaction with the officers. Between July 12, 2011 and July 27, 2011, five phone calls were made to § 87(2)(b) and voice messages were left when possible. On July 12, 2011, § 87(2)(b) confirmed that this was her phone number and stated that she would be able to speak to the undersigned at a later time. On July 12, 2011 a first please call letter was successfully mailed to § 87(2)(b) and on July 20, 2011, a final please call letter was successfully mailed to § 87(2)(b). To date, she has not contacted the CCRB.

NYPD Statements:

Subject Officer: PO KHAN

- § 87(2)(b) -old Asian male, § 87(2)(b) black hair and hazel eyes
- On the day of the incident, PO Khan worked from 1:00 pm to 9:35 pm and he was assigned to the SNEU apprehension team with PO Flynn. He was dressed in uniform and assigned to a marked van.

Memo book

PO Khan made the following entries in his memo book regarding this incident (encl. 6a-b). At 9:30 pm, one male was stopped at § 87(2)(b) and § 87(2)(b) and a c-summons was issued.

Summons

§ 87(2)(a) 160.50

CCRB testimony

PO Khan was interviewed at the CCRB on July 28, 2011 (encl. 6d-e). He stated that on the incident date, at about 9:30 pm, he and PO Flynn were conducting observations of § 87(2)(b) and a barbershop at the corner of § 87(2)(b) and § 87(2)(b). The officers were sitting in their vehicle at the corner of § 87(2)(b) and § 87(2)(b) across the street from these locations. The officers were watching these locations because they are known for drug activity. Sellers usually stand outside of § 87(2)(b) and take people inside the entryway or hallways of this location to sell them narcotics. Drugs are also sold from inside a bodega next to § 87(2)(b) and they are sold from inside the barbershop. The 70th Precinct receives complaints concerning loitering and the selling of crack and other narcotics at § 87(2)(b). There have been multiple arrests for narcotics at this location. There is a general odor of marijuana throughout this immediate area.

PO Khan and PO Flynn watched this location for an hour and a half to two hours. During this time period, PO Khan saw a male, later identified as § 87(2)(b) going in and out of the apartment building at § 87(2)(b). § 87(2)(b) was alone. PO Khan could not see what § 87(2)(b) was doing inside the building or where he went once inside. He entered the building for about 30 seconds or a minute and then exited the building. He appeared to be in a rush. § 87(2)(b) walked back and forth from the building to the barbershop about four or five times. PO Khan could not estimate how long § 87(2)(b) stayed inside the barbershop. § 87(2)(b) was in the barbershop for a short period of time, though it was longer than the amount of time he spent inside § 87(2)(b). PO Khan could not see what § 87(2)(b) was doing inside the barbershop. It was PO Khan's decision to stop § 87(2)(b). He suspected that § 87(2)(b) might be selling drugs out of § 87(2)(b). PO Khan radioed to his supervisor, Sgt. Willabus, that he was making a stop.

PO Khan and PO Flynn approached § 87(2)(b) and PO Khan asked § 87(2)(b) if he lived at § 87(2)(b). As this is a drug prone location, PO Khan wanted to verify that § 87(2)(b) had a legitimate reason for being there. The front door to the building is not locked, and anyone who does not live there would be able to go inside. § 87(2)(b) refused to tell PO Khan whether he lived at § 87(2)(b). PO Khan asked § 87(2)(b) again whether he lived at this location. § 87(2)(b) started to yell, curse and scream. He stated, "I ain't going to tell you shit. You're fucking harassing me. I'm not going to answer any of your fucking questions." § 87(2)(b) used the word "fuck" multiple times. PO Khan told § 87(2)(b) not to curse or scream in public and told him that he would be issued a summons for disorderly conduct for doing so. § 87(2)(b) continued to curse and scream.

PO Khan then asked § 87(2)(b) for ID. § 87(2)(b) refused to provide ID and continued to curse and scream. § 87(2)(b) flailed his hands in the air as he spoke. PO Khan asked § 87(2)(b) multiple times for ID. Eventually, § 87(2)(b) voluntarily provided a New York State ID which listed a different address than § 87(2)(b). PO Khan asked § 87(2)(b) why the address on his ID was different if he lived at § 87(2)(b). § 87(2)(b) told PO Khan that this was none of his business. Because § 87(2)(b) was cursing and screaming, PO Khan suspected that § 87(2)(b) might have a weapon.

At this time, Sgt. Willabus arrived in his car at the location. Sgt. Willabus approached § 87(2)(b) and asked to speak with him. PO Khan took § 87(2)(b)'s ID and went to his car to

write § 87(2)(b) a summons for disorderly conduct for cursing and yelling in public. PO Khan did not overhear Sgt. Willabus and § 87(2)(b)'s conversation. Sgt. Willabus later told PO Khan that he frisked § 87(2)(b) for his safety, though PO Khan did not see this. PO Khan did not see Sgt. Willabus search § 87(2)(b). PO Khan gave the summons to § 87(2)(b) and the officers left the scene.

No officers besides PO Khan and Sgt. Willabus spoke with § 87(2)(b). PO Khan did not create a stop and frisk report for the incident.

Subject Officer: SGT. WINSTON WILLABUS

- § 87(2)(b) -old black male, § 87(2)(b), black hair and brown eyes.
- On the day of the incident, Sgt. Willabus was the supervisor of the SNEU team and he worked from 1:00 pm to 9:57 pm with PO Leon Batson. He was the recorder of a marked patrol car

Memo book

Sgt. Willabus did not make any entries in his memo book regarding this incident (encl. 6f-g).

CCRB testimony

Sgt. Willabus was interviewed at the CCRB on July 28, 2011 (encl. 6h-j). He stated that on the day of the incident at about 9:00 pm, he and PO Batson were conducting a SNEU operation in the vicinity of § 87(2)(b) and § 87(2)(b). Sgt. Willabus and PO Batson were about to go apprehend individuals for selling narcotics when Sgt. Willabus saw two of his officers, PO Flynn and PO Khan standing and talking with a male later identified as § 87(2)(b) in front of § 87(2)(b). Sgt. Willabus approached the officers. PO Batson stayed back towards his and Sgt. Willabus's car and he did not interact with § 87(2)(b).

As Sgt. Willabus approached the officers, he heard PO Khan ask § 87(2)(b) for his ID. § 87(2)(b) responded, "Why should I give you my ID?" Sgt. Willabus asked the officers what was going on. They stated over a period of a few minutes, they watched § 87(2)(b) go back and forth from § 87(2)(b) to a barbershop around the corner. The officers stated that they stopped § 87(2)(b) to ensure that he was not trespassing at § 87(2)(b). § 87(2)(b) yelled at PO Khan and PO Flynn that they were harassing him and shouldn't have stopped him. § 87(2)(b) also used profanity. Sgt. Willabus did not recall specifically what § 87(2)(b) said. Sgt. Willabus asked § 87(2)(b) to lower his voice. § 87(2)(b) did not comply. Throughout the incident, a few passersby stopped to watch what was happening.

As soon as Sgt. Willabus walked up to § 87(2)(b) he smelled marijuana on him and he told him so. Sgt. Willabus asked § 87(2)(b) if he lived at § 87(2)(b). § 87(2)(b) stated, "Why should I tell you if I live here?" § 87(2)(b) then stated that he lived in the building. Sgt. Willabus asked § 87(2)(b) what the address of the building was. § 87(2)(b) stated that the address was § 87(2)(b), which was incorrect. Sgt. Willabus asked § 87(2)(b) to provide his ID to prove that he had a legitimate reason for being at this location. In total, Sgt. Willabus asked § 87(2)(b) to provide ID four or five times. § 87(2)(b) refused by saying that he would not provide ID and asking "Why should I give you my ID?" Sgt. Willabus told § 87(2)(b) that as long as he could verify that he belonged at this location then he could be on his way. § 87(2)(b) still refused to provide his ID.

During this time, § 87(2)(b) moved his hand in and out of his front right pants pocket. § 87(2)(b) did not remove anything from his pocket. He appeared to be touching an object inside the pocket. There was a square palm sized bulge in the pocket. Sgt. Willabus suspected that this bulge might have been a knife or a small gun. Sgt. Willabus asked § 87(2)(b) two or three times to keep his hands where he could see them. § 87(2)(b) complied initially, but then he continued to move his hand inside his pocket. Sgt. Willabus informed § 87(2)(b) that if he could not verify that he lived at the location then he would be arrested for criminal trespass. § 87(2)(b) agreed to provide ID.

Before § 87(2)(b) retrieved his ID, Sgt. Willabus frisked § 87(2)(b) on his chest, waistband, his back and the front and back of his pants. Sgt. Willabus frisked § 87(2)(b) because of § 87(2)(b)'s evasive answers about his purpose at the location, his aggressive behavior and the movement of his hand in and out of his pocket. Sgt. Willabus felt a hard object in the right front pocket of § 87(2)(b)'s pants, in the area where he had initially seen a bulge. He did not search § 87(2)(b) and he did not put his hand inside any of § 87(2)(b)'s pockets. § 87(2)(b) voluntarily removed a cell phone and a stack of money from the pocket where Sgt. Willabus had seen the bulge.

After Sgt. Willabus frisked § 87(2)(b) he allowed him to retrieve his ID from his wallet, which § 87(2)(b) removed from his back pants pocket. § 87(2)(b) gave his ID to Sgt. Willabus. The address on § 87(2)(b)'s ID was in upstate NY. Sgt. Willabus asked § 87(2)(b) if there was anyone who could verify that he belonged in this building. At this time, a female who identified herself as § 87(2)(b)'s aunt came out of the building and stated that § 87(2)(b) had been staying with her. § 87(2)(b) stated that this was true.

Witness Officer: PO BRIAN FLYNN

- § 87(2)(b) -old, § 87(2)(b) white male
- On the day of the incident, PO Flynn worked from 1:00 pm to 9:35 pm and he was assigned to SNEU with PO Khan. He was dressed in uniform and was the operator of a marked van.

Memo book

PO Flynn made the following entry in his memo book regarding this incident (encl. 6k-m). At 9:30 pm, one male was stopped at § 87(2)(b). At 9:40 pm, PO Khan issued the male a summons. The male was irate for being stopped in a drug prone location. He refused to show his ID to officers and to give his name and address.

CCRB testimony

PO Flynn was interviewed at the CCRB on July 27, 2011 (encl. 6n-o). He corroborated PO Khan and Sgt. Willabus's statements with the following additions and exceptions. He stated that on the incident date, at about 9:30 pm, he and PO Khan saw § 87(2)(b) exit § 87(2)(b) and enter the barbershop at least twice. PO Flynn did not recall for how long the officers watched § 87(2)(b) before stopping him. PO Flynn and PO Khan suspected that § 87(2)(b) was selling or buying drugs at § 87(2)(b).

The officers approached § 87(2)(b) on the sidewalk in front of § 87(2)(b) as he was attempting to enter § 87(2)(b). PO Flynn stood a few feet back from PO Khan and § 87(2)(b). He did not speak with § 87(2)(b). PO Khan asked § 87(2)(b) to show ID to confirm that he lived at this location. § 87(2)(b) refused to provide ID and said that he was trying to get into his building. § 87(2)(b) told the officers that he did not need to show them ID because the officers had stopped him illegally. He stated that he was just walking down a city street and that they had no right and no reason to stop him. § 87(2)(b) started screaming and yelling. PO Flynn did not recall any additional statements made by § 87(2)(b) and he did not recall whether § 87(2)(b) used profanity. Two or three passersby started watching the scene. A couple of passersby avoided the scene by crossing the street before reaching § 87(2)(b) and the officers. PO Khan asked § 87(2)(b) for ID three to four times. PO Flynn recalled that officers eventually obtained ID from § 87(2)(b) but he did not remember how they obtained it and whether § 87(2)(b) provided it voluntarily. His ID did not have § 87(2)(b) as the address listed on it.

After officers stopped § 87(2)(b) Sgt. Willabus arrived at the scene. He frisked § 87(2)(b)'s pants. PO Flynn did not recall whether he saw Sgt. Willabus search § 87(2)(b).

Officers not interviewed by the investigation

- Sgt. Willabus stated that PO Batson was his assigned partner on the incident date. However, he stated that as he interacted with § 87(2)(b) PO Batson stayed back by the officers' car and he did not interact with § 87(2)(b). Additionally, § 87(2)(b) did not allege that he interacted with any officers but Sgt. Willabus and PO Khan and stated that PO Flynn was present but that he did not interact with him. § 87(2)(g)

NYPD Documents

There are no police department documents affecting the dispositions of the allegations in this case.

Summons for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of August 3, 2011 with regard to the incident (encl. 8a-b).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 3).

Subject Officers CCRB History

- PO Khan has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 2a).
- Sgt. Willabus has been a member of the service for seven years. In CCRB case #200700641, an abuse-other allegation was substantiated against him, and the department was unable to prosecute. (encl. 2b).

Conclusion

Identification of Subject Officers

PO Khan stated that it was his decision to stop § 87(2)(b) § 87(2)(g). § 87(2)(b). Sgt. Willabus admitted to frisking § 87(2)(b) § 87(2)(g). § 87(2)(b) stated that the same officer who frisked him also searched him. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A—Abuse of Authority: PO Amjad Khan stopped § 87(2)(b)

It is undisputed that § 87(2)(b) went back and forth between § 87(2)(b) and a barbershop about one block away multiple times.

All of the officers interviewed stated that § 87(2)(b) and the barbershop are known drug prone locations, where individuals often buy and sell drugs. Additionally, all of the officers interviewed stated that PO Khan and PO Flynn, as part of their assignments on the SNEU team, were conducting observations of these locations. PO Khan and PO Flynn stated that because of § 87(2)(b)'s traveling back and forth between two drug prone locations, they suspected that he might be selling drugs.

According to Patrol Guide procedure 212-11, an officer has the authority to stop an individual when the officer suspects the individual has committed, is committing, or is about to commit a felony or Penal Law misdemeanor (encl. 1a). § 87(2)(g)

§ 87(2)(b) It is therefore recommended that Allegation A be closed, **Exonerated**.

Allegation B—Abuse of Authority: Sgt. Winston Willabus frisked § 87(2)(b)

It is undisputed that Sgt. Willabus frisked § 87(2)(b) and it is undisputed that § 87(2)(b) initially refused to provide officers with ID despite multiple requests to provide it. § 87(2)(b)

According to all of the officers interviewed by the CCRB, § 87(2)(b) told the officers that they were harassing him and he yelled and screamed. Sgt. Willabus and PO Khan stated that § 87(2)(b) used profanity, though PO Flynn did not recall whether § 87(2)(b) cursed.

§ 87(2)(b) denied using profanity during the incident, and § 87(2)(b) and § 87(2)(b) corroborated this assertion.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

According to Patrol Guide procedure 212-11, an officer has the authority to frisk an individual when he reasonably suspects that he or others are in danger of physical injury.

§ 87(2)(g)

It is therefore recommended that Allegation B be closed, **Unsubstantiated**.

Allegation C—Abuse of Authority: Sgt. Winston Willabus searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) consistently reported that after Sgt. Willabus frisked him, he put his fingers inside § 87(2)(b)'s sneakers, under the arches of § 87(2)(b)'s feet. Neither § 87(2)(b) nor § 87(2)(b) stated that they saw Sgt. Willabus do this.

Sgt. Willabus denied searching § 87(2)(b). PO Khan did not see Sgt. Willabus search § 87(2)(b) and he stated that he was inside the officers' car, writing § 87(2)(b) a summons as Sgt. Willabus interacted with § 87(2)(b). PO Flynn did not recall whether Sgt. Willabus searched § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]

It is therefore recommended that allegation C be closed, **Unsubstantiated**.

§ 87(2)(g), § 87(4-b) [Redacted]
[Redacted]

[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date